

## 24STCV14962 24STCV14962

County: los-angeles

Division: Civil Law and Motion

Department: 311

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV14962

JANE

DOE 1, et al. vs MCGRATH KAVINOKY, LLP, et al.

August

10, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT MCGRATH KAVINOKY LLP'S MOTION TO COMPEL FURTHER RESPONSES TO ITS FORM INTERROGATORIES—GENERAL (SET ONE) IN COMPLIANCE WITH THE COURT'S APRIL 3, 2026 ORDER.

RULING:

The Motion is granted.

On or before September

25, 2026, Plaintiffs JANE DOE 1 and JANE DOE 2 shall serve further responses in full compliance with the California Discovery Act (Code Civ. Proc. § 2016.010 et seq.), and the March 2, 2026 Order, as to Defendant MCGRATH KAVINOKY LLP'S Form Interrogatories, (Set One), as to all numbers specified in the Motion and herein.

On or before that same

date, Plaintiffs JANE DOE 1 and JANE DOE 2, jointly and severally, shall pay discovery sanctions in the sum of \$5,000.00 to Defendant MCGRATH KAVINOKY LLP, the Court finding the absence of substantial justification. (E.g., Code Civ. Proc., § 2023.030.)

Additionally, the Court

refers all future discovery motions in this case to the Discovery Referee appointed via the Order filed January 16, 2026, which the Court now modifies to expand the appointment scope. (Code Civ. Proc., § 639.)

Therefore, the four

discovery motions scheduled for hearing on August 17 and August 21, 2026, are advanced and ordered off calendar.

Plaintiff to serve and

file proposed Order expanding Discovery Referee's appointment scope as described herein, within 10 days.

Defendant to give notice.

I.

BACKGROUND

The Court incorporates by

reference the Background stated in the Minutes entered on November 17, 2025.

On July 7, 2026, MCGRATH

KAVINOKY LLP (Defendant) filed the Motion to Compel Further Responses to certain

Form Interrogatories, arguing that the supplemental responses are not fully compliant with the Minutes entered on March 2, 2026. Defendant also requests sanctions against DOES 1 and 2 in the amount of \$5,000.00.

JANE DOE 1 and JANE DOE 2

(Plaintiffs) oppose, arguing that supplemental responses have been served in compliance with the Order, more supplemental responses will be served before the hearing, and three items are objectionable. Plaintiff also advocates appointing the Discovery Referee for this and future discovery matters. (Opposition, p. 1, fn. 1.)

I.

#### LEGAL STANDARD

“While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 541.)

#### Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.)

II.

#### ANALYSIS

Defendant moves for an order compelling Plaintiffs to provide full, complete, and straightforward responses to the following form interrogatories, in compliance with the Court's April 3, 2026 Order, within ten days:

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MK's Form Interrogatory Nos. 2.6, 7.1, 8.3, 8.4, 8.6, 8.8, 9.1, 10.1, and 10.2 to Doe 1 (Set One); and

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MK's Form Interrogatory Nos. 4.1, 6.3, 6.6, 7.1, 9.1, 10.1, and 10.2 to Doe 2 (Set One).

Plaintiffs, in opposition,  
emphasize the following positions:

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Defendant harasses by nitpicking and  
seeking information they already have or could obtain via deposition questions.

.

Plaintiffs volunteer to further supplement,  
including as to damages estimates.

.

Plaintiffs continue to object to numbers  
2.6, 8.8 and 4.1.

Where respondents served  
discovery responses after parties have filed motions to compel responses,  
courts have broad discretion as to ruling. (Sinaiko  
Healthcare Consulting, Inc. v. Klugman (2007) 148 Cal.App.4th 390, 409; County  
of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256; St. Mary  
v. Superior Court (2014) 223 Cal.App.4th 762, 778.)

Where a party willfully  
disobeys a discovery order, courts have discretion to impose terminating,  
issue, evidence or monetary sanctions. (E.g.,  
Code Civ. Proc., §§ 2023.010, subd. (g), 2030.290, subd. (c); R.S. Creative, Inc. v. Creative Cotton, Ltd.  
(1999) 75 Cal.App.4th 486, 495.)

Here, while Plaintiff  
offers to further supplement, it has not been accomplished as of the time of  
the Opposition, as stated therein, at page 4, line 1. Any supplements served  
before the hearing would not change the Court's analysis, as the issue is Order  
compliance, not further responses.

Further, although

Plaintiff argues some objections and grounds against responding further, the question is whether Plaintiff willfully disobeyed the Order, after discovery objections already have been overruled.

Additionally, whether

Defendant has alternative means to obtain some information is not cognizable under the Discovery Act. Discovery is allowed even if it is duplicative of other information already obtained. (*Tbg Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448; *Carter v.*

*Superior Court* (1990) 218 Cal.App.3d 994, 997 [allowing demands for documents and depositions notices requesting documents]. Cf. *Olympic Club v. Superior Court* (1991) 229 Cal.App.3d 358, 363 ["Absent an admission ..., or the ... possession of compelling evidence, we cannot say that the City must terminate its search for further proof of its allegations."].) "A party is permitted to use multiple methods of obtaining discovery and the fact that information was disclosed under one method is not, standing alone, a proper basis for refusing to provide discovery under another method." (*Irvington-Moore, Inc. v. Superior Court* (1993) 14 Cal.App.4th 733, 739. Accord, *Bunnell v. Superior Court* (1967) 254 Cal.App.2d 720, 723 ["plaintiff could not refuse to answer merely on the claim that the requested information had been given in previous depositions...."].) "The use of ... interrogatories is in addition to and exclusive of the right to take the deposition of the same party, and either procedure may be resorted to before or after the other." (*Greyhound Corp. v. Superior Court* (1961) 56 Cal.2d 355, 373, superseded by statute on other grounds as stated in *Dowden v. Superior Court* (1999) 73 Cal.App.4th 126, 132.) Courts have discretion to prohibit discovery if it is unreasonably duplicative or unduly burdensome. (E.g., Code Civ. Proc., § 2019.030, subd. (a); *City of King City v. Community Bank of Central California* (2005) 131 Cal.App.4th 913, 933; *Emerson Elec. Co. v. Superior Court* (1997) 16 Cal.4th 1101, 1110.)

As for number 2.6, the witness

contact information is standard of official form interrogatories. Form interrogatories approved by the Judicial Council entail fundamentally routine discovery of witness contact information. (*Puerto v. Superior Court* (2008) 158 Cal.App.4th 1242, 1250.)

Regarding number 8.8, lost

income needs to be estimated, subject to later expert input. A response must “represent the interrogated party’s present best and complete answer.” (Fuss v. Superior Court (1969) 273 Cal.App.2d 807, 816.) (Underscoring added.) Other jurisdictions have required parties to calculate damages based on the best information available at the time of the discovery responses and to provide any later available information in response to any proper supplemental discovery requests. (See generally Damages, 7 Annotated Patent Digest § 41:41.50 [available on Westlaw].)

Additionally, number 4.1,

subparagraph (f), seeking, “any reservation of rights or controversy or coverage dispute exists between you and the insurance company”, is not just confined to a cap on coverage, but any controversy, which could include a bad faith denial of some coverage, et cetera. “A party may not deliberately misconstrue a question for the purpose of supplying an evasive answer. [Citation.] Indeed, where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response.” (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 783. Accord, Field v. U.S. Bank Nat’l Assn. (2022) 79 Cal.App.5th 703, 708.)

III.

#### CONCLUSION

Accordingly, the Court grants the Motion, as specified herein.

Additionally, the Court

refers all future discovery matters to the Discovery Referee initially arranged by the Order entered November 17, 2025, considering that the Court already has decided many of the unusually voluminous discovery matters, such as the extensive Order filed June 25, 2025, which matters are related to an expansive scope of the First Amended Complaint (FAC), referencing “312 clients” involved in the settlement at issue. (FAC, ¶ 9.)